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Tentative Ruling

Re: ***Gardenhire v. Wroten et al.***
Superior Court Case No. 20CECG00580

Hearing Date: September 15, 2026 (Dept. 403)

Motion: By Plaintiffs for Reconsideration – Set Aside Dismissal

Tentative Ruling:

To deny. (Code Civ. Proc., § 473, subd. (b).)

Explanation:

The title of the motion may not be determinative of what the motion is actually requesting. A trial court may construe a motion bearing one label as a different type of motion. This is consistent with the court's inherent authority to manage and control its docket. (*Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 187, 192-193; see also *Pierson v. Sharp Memorial Hosp.* (1989) 216 Cal.App.3d 340, 342-343.)

Here, the motion filed on behalf of plaintiffs Geraldine Gardenhire and Loretta Rehbein (collectively "Plaintiffs") was not a motion for reconsideration based on "new facts [or] circumstances," but to request that the dismissal ordered on April 29, 2026 be set aside based on counsel's affidavit of fault. (Code Civ. Proc., §§ 1008, subd. (a), 473, subd. (b).)

The application for relief under section 473, subdivision (b), and notice to the adverse party, must be made within a reasonable time, not exceeding six months from the court's order to dismiss. (Code Civ. Proc. § 473, subd. (b); *Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 341.) Notice to an adverse party who has not appeared in the action is also required, as the order to set aside dismissal may affect the rights of the adverse party. (*McDonald v. Severy* (1936) 6 Cal.2d 629, 631.)

While Plaintiffs' application to set aside dismissal was filed within six months of the order to dismiss, a proof of service showing that defendants Cathy Wroten and Steve Wroten were noticed of the instant application was not filed. While defendants have not appeared in the action, notice of an application to set aside dismissal is required because the requested order would affect their rights. Thus, Plaintiffs' application to set aside dismissal must be denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on September 14, 2026.
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Aguilar v. City of Fresno***
Superior Court Case No. 26CECG01287

Hearing Date: September 15, 2026 (Dept. 403)

Motion: Petition for Leave to File Action Against A Government Entity

Tentative Ruling:

To deny without prejudice due to lack of proper service (Gov. Code, § 946.6.)

Explanation:

The Government Claims Act provides that a timely written claim must first be presented to a public entity prior to any lawsuit for money damages against it. (Gov. Code, § 810 et seq.; *N.G. v. County of San Diego* (2020) 59 Cal.App.5th 63, 72.) Government Code section 911.2, subdivision (a) provides that such a claim is to be presented no later than six months after the accrual of the cause of action. (Gov. Code, § 911.2; *Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1776.) The policy behind the requirement to file a timely claim is threefold, as it 1) gives the entity an opportunity to promptly remedy the condition, 2) allows the entity to investigate while evidence is still available and witnesses' memories are fresh, and 3) gives the entity time to plan its budget accordingly. (*Munoz, supra.*)

Where a claim is not timely presented, a written application can be made to the public entity for leave to present the claim. (Gov. Code, § 911.4, subd. (a); *Munoz, supra*, 33 Cal.App.4th at p. 1777.) The application to present a late claim must be made to the public entity within one year of the accrual of the cause of action and state what caused the delay in presenting the claim. (Gov. Code, § 911.4, subd. (b); *Munoz, supra.*) Where the public entity denies the application to present a late claim, the claimant must petition the trial court for relief from the claim filing requirements. (Gov. Code, § 946.6; *Munoz, supra.*)

The petition must be denied at this time because, though it is unopposed by the City of Fresno, petitioner has not filed an adequate proof of service on the City, or any notice of this hearing. "A copy of the petition and a written notice of the time and place of hearing shall be served before the hearing as prescribed by subdivision (b) of Section 1005 of the Code of Civil Procedure on (1) the clerk or secretary or board of the local public entity, if the respondent is a local public entity, or (2) the Attorney General, if the respondent is the state." (Gov. Code, § 946.6, subd. (d).) Attached to the Petition is a proof of service, but the POS does not indicate who was served or at what address. It is ineffective to show service on any person or entity. Additionally, the hearing on the petition was not set until months after the Petition was served (on persons unknown and unspecified). There is no showing that the City has notice of this hearing. The lack of opposition indicates that the City has not received notice. Accordingly, the Petition is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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